

Court No. - 39

Case :- WRIT - C No. - 8462 of 2021

Petitioner :- Sarasth Propbuild Pvt. Ltd.

Respondent :- Executive Engineer Electricity Urban Distribution And 4 Others

Counsel for Petitioner :- Indra Bhan Yadav, Namit Srivastava

Counsel for Respondent :- C.S.C.

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Mrs. Sadhna Rani (Thakur), J.

Sri Krishna Agarwal learned Advocate is present on behalf of respondents.

As prayed by Sri Namit Srivastava, learned counsel for the petitioner, adjournment is granted for the day to enable him to complete his instructions.

Put up this matter on **5.4.2021 as fresh** showing the name of Sri Krishna Agarwal learned Advocate from the side of respondents.

Order Date :- 25.3.2021

Harshita

Court No. - 9

Case :- WRIT - C No. - 8462 of 2021

Petitioner :- Sarasth Propbuild Pvt. Ltd.

Respondent :- Executive Engineer Electricity Urban Distribution And 4 Others

Counsel for Petitioner :- Indra Bhan Yadav, Namit Srivastava

Counsel for Respondent :- C.S.C.

Hon'ble Sanjay Yadav, Acting Chief Justice

Hon'ble Prakash Padia, J.

Matter is taken up through video conferencing.

Despite repeated efforts made by the office, the learned counsel for the petitioner is not responding.

List after four weeks as fresh.

Order Date :- 19.4.2021

Kirti

(Prakash Padia, J) (Sanjay Yadav, ACJ)

Chief Justice's Court

Case :- WRIT - C No. - 8462 of 2021

Petitioner :- Sarasth Propbuild Pvt. Ltd.

Respondent :- Executive Engineer Electricity Urban
Distribution And 4 Others

Counsel for Petitioner :- Indra Bhan Yadav, Namit Srivastava

Counsel for Respondent :- C.S.C., Krishna Agarawal

Hon'ble Sanjay Yadav, Chief Justice

Hon'ble Prakash Padia, J.

Matter is taken up through video conferencing.

It is informed by learned counsel for the petitioner that presently he is out of station, therefore, in personal difficulty to conduct the matter.

In view whereof and as prayed for, list this matter after four weeks as fresh.

Order Date :- 14.6.2021

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(Prakash Padia, J.)

(Sanjay Yadav, C.J.)

Court No. - 3

Case :- WRIT - C No. - 8462 of 2021

Petitioner :- Sarasth Propbuild Pvt. Ltd.

Respondent :- Executive Engineer Electricity Urban Distribution And 4 Others

Counsel for Petitioner :- Indra Bhan Yadav, Namit Srivastava

Counsel for Respondent :- C.S.C., Krishna Agarawal

Hon'ble Naheed Ara Moonis, J.

Hon'ble Saumitra Dayal Singh, J.

Heard Shri Namit Srivastava, learned counsel for the petitioner, Shri Krishna Agarawal, learned counsel for the corporation and learned Standing Counsel for the State.

The present writ petition has been filed seeking following reliefs:-

"(i) Issue a writ, order or direction in the nature of certiorari quashing the recovery citation of Rs. 2,47,75,915/- dated 31.12.2019 issued by the respondent no. 5 and the auction notice dated 13.01.2021 issued by the respondent no. 4 (Annexure No. 3 & 4) to this writ petition respectively.

(ii) Issue a writ, order or direction in the nature of certiorari quashing the demand notice dated 26.06.2019 issued by the respondent no. 1 (Annexure No. 2) to the writ petition."

At the outset, Shri Krishna Agarawal has raised preliminary objection as to the maintainability of the present petition in face of Original Suit No. 696 of 2019 being pending before the Civil Judge, Senior Division (Fast Track Court), Ghaziabad, for similar relief.

Upon instructions, Shri Namit Srivastava states that the aforesaid suit will be withdrawn within a week.

Thereupon in view of such statement made and in view of the order we propose to waive the preliminary objection raised by the respondent-corporation.

On merits, it is seen that the petitioner is disputing the correctness of the bill issued by the respondent-corporation, for which, the petitioner has an adequate remedy to approach the respondent no. 2 under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 (hereinafter referred to as the 'Code').

As to the requirement of pre-deposit amount, Shri Namit Srivastava states that the petitioner will deposit the amount as computed by the respondent-corporation under Clause 6.5(b)(ii)

of the Code.

In view of such facts and circumstances and the statements made, we ***dispose of*** the present petition with the following directions:-

1. The petitioner shall file an application to withdraw the Original Suit No. 696 of 2019 within a period of one week from today.
2. Within the aforesaid time period, the respondent-corporation shall communicate to the petitioner the exact amount required to be pre-deposited under Clause 6.5(b)(ii) of the Code.
3. The petitioner shall have two weeks' thereafter to file a fresh application in terms of Clause 6.5 of the Code along with certified copy of the application seeking withdrawal of the suit and proof of pre-deposit, required to be made.
4. Upon such application being filed, the respondent no. 2 shall proceed to pass an appropriate order on the petitioner's application within a period of two weeks' after giving due opportunity of hearing to the petitioner.

For a period of six weeks' from today or till the disposal of the petitioner's application, whichever is earlier, the disputed demand of electricity due against the petitioner shall remain in abeyance.

Order Date :- 16.7.2021

Saurabh